



MEMORANDUM

TO: Governing Body, City of Cheyenne
FROM: Renee Smith, Grants Manager
DATE: SEPTEMBER 19, 2022
SUBJECT: RESOLUTION TO ACCEPT FEMA BRIC GRANT – Clear Creek

The City of Cheyenne was awarded a U.S. Department of Homeland Security Federal Emergency Management Agency FY 2021 Building Resilient Infrastructure Communities grant in the amount of \$262,500.

Grant funds will be used to complete project scoping design work for the **Cheyenne Clear Creek Detention Storage Basin**. This project scoping effort/design will evaluate and identify a feasible, constructible inline storage facility within the corporate limits of Cheyenne to realign the Ames Avenue constriction and add storage to reduce the flood risk for residential and commercial properties.

This project's scope-of-work will include the following tasks: Field surveys and reconnaissance for collection and evaluation of pertinent data needed for hydraulic modeling of design alternatives including conveyance pipes for a realignment of the Clear Creek confluence with Crow Creek, the evaluation/design of a detention storage facility to provide flood relief for both the Ames Avenue underpass and downstream residential properties located in the historic flow path of Clear Creek that has been inundated with larger flood events, and digital topographic data development for use in the hydraulic and geotechnical modeling efforts. The project also includes the development a working hydraulic model to evaluate and design alternative storage areas and conveyance pipes using a reach specific model.

The total project cost is \$350,000, designating \$87,500 matching funds from the 1% Drainage Fund.

Grant Narrative: This area of our community is inundated with flood waters on a nearly annual basis causing property damage and impacting our business owners. The Ames underpass is one of only three routes across the Union Pacific rail yard and is critical for emergency response. Both the 1988 Dry Creek Drainage Master Plan and the 2000 Surface Water Drainage Committee Final Report listed the UPRR Ames underpass as a critical flood hazard. Our project scoping/design efforts for the Clear Creek storage flood control project will lead to an application-ready mitigation project for a future BRIC funding opportunity in FY2023 and represents a worthwhile investment of BRIC funding as we are addressing multiple community lifelines with this project.

If you have any questions or need further clarification, please give me a call at 637-6285 or email at rsmith@cheyennecity.org

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE ACCEPTANCE OF A FY21 BUILDING RESILIENT INFRASTRUCTURE AND COMMUNITIES GRANT FOR SCOPING AND DESIGN WORK FOR THE CHEYENNE CLEAR CREEK DETENTION STORAGE FACILITY.”

WHEREAS, the governing body for the City of Cheyenne desires to accept a grant from the U.S. Department of Homeland Security (DHS) Federal Emergency Management Agency (FEMA) under the Capability and Capacity Building Activity program; and

WHEREAS, the governing body for the City of Cheyenne recognizes the need to address critical flood hazards; and

WHEREAS, this Project will result in an application ready construction project for future funding opportunities; and

WHEREAS, the governing body for the City of Cheyenne accepts a grant amount of \$262,500 toward the cost of the proposed Project; and

WHEREAS, the governing body for the City of Cheyenne agrees to provide \$87,500 from the 1% Drainage Fund for the required local match; and

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that a grant contract for \$262,500 be accepted from the U.S. Department of Homeland Security Federal Emergency Management Agency for the Cheyenne Clear Creek Detention Storage Facility scoping and design project.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2022.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

**GRANT AWARD AGREEMENT BETWEEN
WYOMING OFFICE OF HOMELAND SECURITY
AND
CITY OF CHEYENNE**

Grant Award for U.S. Department of Homeland Security (DHS) Federal Emergency Management Agency (FEMA) Fiscal Year 2021 Building Resilient Infrastructure and Communities (BRIC).

Subrecipient:	City of Cheyenne
UEI#:	X7BTN16ZQSY9
FEMA Grant ID:	EMD-2021-BR-047
FEMA Subgrant ID:	EMD-2021-BR-047-0002
Federal Award Date:	08/31/2022
WOHS Grant ID:	21-BRIC-CHE-CLR2
CFDA #:	97.047 – Building Resilient Infrastructure & Communities
Federal Award Amount:	\$262,500.00
Subrecipient Match Amount:	\$87,500.00
Total Amount:	\$350,000.00
Period of Performance:	September 1, 2022 through June 30, 2025

1. **Parties.** The parties to this Grant Award Agreement (Agreement) are the Wyoming Office of Homeland Security (Agency), whose address is: 5500 Bishop Boulevard, Cheyenne, WY 82002, and the City of Cheyenne (Subrecipient), whose address is: 2101 O’Neil Avenue, Cheyenne, WY 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to set forth the terms and conditions by which the Subrecipient shall complete project scoping design work for the Cheyenne Clear Creek Detention Storage as described in Attachment A, Subgrant Project Scoping Application, which is attached to and incorporated into this Agreement by this reference. Funding allocated under this Agreement is not for the purpose of research and development as defined by 2 CFR Part 200.87.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The Period of Performance of the Agreement is from September 1, 2022 through June 30, 2025. All services shall be completed during the Period of Performance.
4. **Payment.**
 - A. The Agency agrees to pay the Subrecipient for the services described in Section 5 below. Total payment under this Agreement shall not exceed two hundred sixty-two thousand five hundred dollars and zero cents (\$262,500.00). Payment shall be made following receipt of Subrecipient’s reimbursement request with attached backup documentation including invoices and proof of payment. Payment shall be made within forty-five (45) days after submission after submission of invoices and proof of payment pursuant to Wyo. Stat. § 16-6-602. Subrecipient shall submit invoices in sufficient detail to ensure that payments may be made in conformance with this Agreement.

- B. No payment shall be made for work performed outside the Period of Performance of this Agreement. Should the Subrecipient fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, payment under this Agreement may be withheld until such time as the Subrecipient performs its duties and responsibilities to the satisfaction of Agency.
- C. Except as otherwise provided in this Agreement, the Subrecipient shall pay all costs and expenses, including travel, incurred by Subrecipient or on its behalf in connection with Subrecipient's performance and compliance with all of Subrecipient's obligations under this Agreement.

5. **Responsibilities of Subrecipient.** The Subrecipient agrees to:

- A. Perform mitigation actions as described in Attachment A, Subgrant Project Scoping Application.
- B. Comply with terms and conditions as described in Attachment B, Agreement Articles, which is attached to and incorporated into this Agreement by this reference.
- C. Submit quarterly reports outlining the project activity and current project status by the 20th day of the month following each calendar quarter (Jan 20, Apr 20, July 20, Oct 20) as described in Attachment C, Basics for Quarterly Reports form, which is attached to and incorporated into this Agreement by this reference.
- D. Comply with the 2021 Building Resilient Infrastructure and Communities (BRIC) Notice of Funding Opportunity (NOFO) and the Hazard Mitigation Assistance (HMA) Guidance to implement this Grant Agreement, and agrees that all use of funds under this Grant Agreement will be in accordance with the 2021 BRIC NOFO and the HMA Guidance.

6. **Responsibilities of Agency.** The Agency agrees to:

- A. Pay Subrecipient in accordance with Section 4 above.
- B. Be available to provide necessary and feasible technical advice, which may be reasonably required by Subrecipient.
- C. Notify Subrecipient of information and updates received from the Federal Emergency Management Agency (FEMA) or other federal agencies which may affect or otherwise restrict the availability of funds awarded to Subrecipient herein.

7. **Special Provisions.**

- A. Assumption of Risk.** The Subrecipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Subrecipient's failure to comply with state or federal requirements. The Agency shall notify the Subrecipient of any state or federal determination of noncompliance.
- B. Kickbacks.** Subrecipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If Subrecipient breaches or violates this warranty, Agency may, at its discretion, terminate this Agreement without liability to Agency, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- C. Monitoring Activities.** Agency shall have the right to monitor all activities related to this Agreement that are performed by Subrecipient or its sub-subrecipients. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of Agreement related work.
- D. No Finder's Fees:** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- E. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the Subrecipient and related to the services and work to be performed under this Agreement, shall identify the Agency as the sponsoring agency and shall not be released without prior written approval of Agency.
- F. Administration of Federal Funds.** Subrecipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements, Cost Principles, and Audit Requirements at 2 CFR Part 200. Federal funds made available through an award under the Building Resilient Infrastructure and Communities (BRIC) Notice of Funding Opportunity may only be used in a manner that is consistent with 42 U.S.C. § 5133; FEMA Policy (FP) 104-008-05, Hazard Mitigation Assistance: BRIC Policy and meets the eligibility criteria outlined in Section C.3; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by Agency.
- G. Federal Audit Requirements.** Subrecipient agrees that if it expends an aggregate amount of seven hundred fifty thousand dollars (\$750,000.00) or more in federal funds during its fiscal year, it must undergo an organization-wide financial and compliance single audit. Subrecipient agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit

Requirements of 2 C.F.R. Part 200, Subpart F. If findings are made which cover any part of this Agreement, Subrecipient shall provide one (1) copy of the audit report to Agency and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to Agency's records.

- H. Program Income.** Subrecipient shall not deposit grant funds in an interest bearing account without prior approval of Agency. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to Agency.

8. General Provisions.

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement. Any changes in the Scope of Work shall be addressed as set forth in the BRIC NOFO and the Hazard Mitigation Assistance Guidance, which are incorporated into this Agreement by this reference.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms "hereof," "hereunder," "herein," and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Subrecipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of the Agency.
- D. Audit and Access to Records.** The Agency and its representatives shall have access to any books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall immediately, upon receiving written instruction from the Agency, provide to any independent auditor or accountant all books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by the Agency.
- E. Availability of Funds.** Each payment obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the

Agreement, the Agreement may be terminated by the Agency at the end of the period for which the funds are available. The Agency shall notify the Subrecipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.

- F. Award of Related Agreements.** The Agency may award supplemental or successor Agreements for work related to this Agreement or may award Agreements to other Subrecipients for work related to this Agreement. The Subrecipient shall cooperate fully with other Subrecipients and the Agency in all such cases.
- G. Compliance with Laws.** The Subrecipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Agreement.
- H. Confidentiality of Information.** Except when disclosure is required by the Wyoming Public Records Act or court order, all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement shall be kept confidential by the Subrecipient unless written permission is granted by the Agency for its release. If and when Subrecipient receives a request for information subject to this Agreement, Subrecipient shall notify Agency within ten (10) days of such request and shall not release such information to a third party unless directed to do so by Agency.
- I. Entirety of Agreement.** This Agreement, consisting of nine (9) pages; Attachment A, Subgrant Project Scoping Application, consisting of fifteen (15) pages; Attachment B, Agreement Articles, consisting of fifteen (15) pages; and Attachment C, Basics for Quarterly Reports form, consisting of two (2) pages, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.
- J. Ethics.** Subrecipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Subrecipient's profession.
- K. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein.
- L. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods,

epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.

- M. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- N. Independent Contractor.** The Subrecipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Subrecipient shall be free from control or direction over the details of the performance of services under this Agreement. The Subrecipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Subrecipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Subrecipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency or to incur any obligation of any kind on behalf of the State of Wyoming or the Agency. The Subrecipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to State of Wyoming employees will inure to the benefit of the Subrecipient or the Subrecipient's agents or employees as a result of this Agreement.
- O. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided below:

Contact for the Agency:

Ashley Paulsrud
Grants/Finance Section Chief
5500 Bishop Boulevard
Cheyenne, Wyoming 82009
307-777-4907
Ashley.paulsrud@wyo.gov

With a copy to:

Lynn Budd (Awarding Official)
Director, Wyoming Office of Homeland Security
5500 Bishop Boulevard
Cheyenne, Wyoming 82009
307-777-8511
Lynn.budd@wyo.gov

- P. Ownership and Return of Documents and Information.** Agency is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement. Upon termination of services, for any reason, Subrecipient agrees to return all such original and derivative information and documents to the Agency in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.
- Q. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- R. Insurance Requirements.** Subrecipient is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, et seq., and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, et seq., and shall provide a letter verifying its participation in the WARM or LGLP to the Agency. Subrecipient shall also adhere to the Insurance terms set forth in the BRIC NOFO and the Hazard Mitigation Assistance Guidance.
- S. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- T. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and Agency expressly reserve sovereign immunity by entering into this Agreement and the Subrecipient expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, et seq., and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- U. Taxes.** The Subrecipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.

- V. Termination of Agreement.** This Grant may be terminated, without cause, by the Agency upon thirty (30) days written notice. This Grant may be terminated by the Agency immediately for cause if the Subrecipient fails to perform in accordance with the terms of this Agreement. The parties' rights regarding termination of this Agreement shall also be set forth in the BRIC NOFO and the Hazard Mitigation Assistance Guidance.
- W. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- X. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- Y. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- Z. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- AA. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Subrecipient of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to the Agency.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.

9. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

AGENCY:

Wyoming Office of Homeland Security

Lynn Budd, Director

Date

SUBRECIPIENT:

City of Cheyenne

Patrick Collins, Mayor

Date

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

Brie M. Richardson 225893
Brie M. Richardson, Assistant Attorney General

9/08/2022
Date